

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3350

By: Williams

AS INTRODUCED

An Act relating to crimes and punishments; amending
21 O.S. 2021, Section 701.11, which relates to
sentencing in murder cases; updating language; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 701.11, is
amended to read as follows:

Section 701.11. In the sentencing proceeding, the statutory
instructions as determined by the trial judge to be warranted by the
evidence shall be given in the charge and in writing to the jury for
its deliberation. The jury, if its verdict be a unanimous
recommendation of death, shall designate in writing, signed by the
foreman of the jury, the statutory aggravating circumstance or
circumstances which ~~it~~ the jury unanimously found beyond a
reasonable doubt. In nonjury cases the judge shall make such
designation. Unless at least one of the statutory aggravating
circumstances enumerated in Section 701.12 of this act ~~act~~ title is so

1 found or if it is found that any such aggravating circumstance is
2 outweighed by the finding of one or more mitigating circumstances,
3 the death penalty shall not be imposed. If the jury cannot, within
4 a reasonable time, agree as to punishment, the judge shall dismiss
5 the jury and impose a sentence of imprisonment for life without
6 parole or imprisonment for life.

7 SECTION 2. This act shall become effective November 1, 2026.

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